

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER 1166163		PAGE OF 1 13		
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 1240BD26Q0031		6. SOLICITATION ISSUE DATE 04/02/2026	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME MINDY HICKMAN			b. TELEPHONE NUMBER (No collect calls) 503-668-1601		8. OFFER DUE DATE/LOCAL TIME 04/16/2026 1100 PD	
9. ISSUED BY USDA-FS CSA NORTHWEST 2 1220 SW 3RD AVE STE 310 PORTLAND OR 97204-2829				CODE 40BD	10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 561720 SIZE STANDARD: \$22			
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ☐ ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)		
15. DELIVER TO USDA FOREST SERVICE MOOSE CREEK RANGER DISTRICT 831 SELWAY KOOSKIA ID 83539				CODE 02F2	16. ADMINISTERED BY USDA-FS CSA NORTHWEST 2 1220 SW 3RD AVE STE 310 PORTLAND OR 97204-2829			
17a. CONTRACTOR/ OFFEROR		CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY				CODE
TELEPHONE NO.				☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐ 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM				
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT	
	R1 Janitorial Services Fenn Ranger Station, Moose Creek Ranger District, Nez-Perce-Clearwater NF Delivery: 5 Days After Award Period of Performance: 05/01/2026 to 04/30/2027 Continued ... <i>(Use Reverse and/or Attach Additional Sheets as Necessary)</i>							
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Government Use Only)		
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☒ ARE ☐ ARE NOT ATTACHED.		
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.		
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u>1</u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:				
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)				
30b. NAME AND TITLE OF SIGNER (Type or print)			30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED		
				MINDY N. HICKMAN				

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with FAR part 12.

This acquisition *is* set-aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The applicable North American Industry Classification Standard Code is 561720 Janitorial Services. The small business size standard is \$22 million.

This work is being solicited as a performance-based service contract. The Contractor shall provide all management, tools, equipment, and labor necessary to ensure that janitorial services are performed at Government-owned facilities for the Fenn Ranger Station in a manner that will maintain satisfactory facility conditions and present a clean, neat, and professional appearance. The Contractor's workforce shall perform all services associated with general janitorial cleaning duties listed in the technical requirements.

The Government is not responsible for any error or variation in the square footage listed, nor will the Contractor, because of any error or variation in the square footage listed, be relieved of his/her responsibility to carry out the contract in accordance with the true intent and meaning of the specifications and there shall be no additional cost to the Government based solely on an error or variation in the square footage or other similar miscalculations listed. See attached PWS and Maps for building information.

Statement of Requirement

The Fenn Ranger Station (Fenn RS) has a requirement for janitorial services within seven Government-owned facilities. Five of the buildings will require year-round janitorial services.

Buildings that require year round services are:

1. Administration Office
2. Assessment Office
3. Fire Office
4. Visitor Center
5. Cookhouse

Janitorial services are required bi-annually for:

1. Fenn Bunkhouse
2. Cedar Flats Dormitory.

Schedule of Services

See Attachment 1 - Schedule of Services

1. Attachments List: The following attachments are made as part of this solicitation and any resultant contract. The schedule of items will be used only as a reference document. The contract line items will be the primary ordering means.

Attachment Number	Description	Page Count
1	SCHEDULE OF SERVICES / PRICE LIST	10
2	PERFORMANCE WORK STATEMENT	19
3	ADMINISTRATION OFFICE FIRST FLOOR	1
4	ADMINISTRATION OFFICE SECOND FLOOR	1

5	ADMINISTRATION OFFICE THIRD FLOOR	1
6	ADMINISTRATION OFFICE BASEMENT	1
7	ASSESSMENT OFFICE	1
8	FIRE OFFICE FIRST FLOOR	1
9	VISITOR CENTER	1
10	COOKHOUSE	1
11	FENN BUNKHOUSE FIRST FLOOR	1
12	FENN BUNKHOUSE LOWER FLOOR	1
13	CEDAR FLATS DORMITORY	1
14	CEDAR FLATS DORMITORY EXTERIOR	1
15	WAGE DETERMINATION 2015-5511	10

SCHEDULE OF WORK

The facility office hours are from 7:30 a.m. to 4:30 p.m. Monday through Friday, except Federal Holidays. Contractor work hours shall be between the hours of **5:00 p.m. and 5:00 a.m.** except on weekends. Weekend cleaning may be performed at any time during the weekend.

Federal Holidays:

- New Year's Day, January 1
- Washington's Birthday, third Monday in February
- Juneteenth, June 19
- Labor Day, first Monday in September
- Veteran's Day, November 11
- Christmas Day, December 25
- Martin Luther King, Jr., third Monday in January
- Memorial Day, last Monday in May
- Independence Day, July 4*
- Columbus Day, second Monday in October
- Thanksgiving Day, Fourth Thursday in November

Government facilities observe Federal Holidays that fall on a weekend as follows: Government facility will be closed the Friday before a holiday which falls on a Saturday; Government facility will be closed the first Monday after a holiday which falls on a Sunday.

Contractor will coordinate the specific schedule with the COR, provided all work remains within the 5:00 p.m. to 5:00 a.m. window for all Contract Line Items. Contractor's normal work schedule shall be posted with contract information in the same area as storage of materials.

The Fenn Ranger Station periodically (possibly 6 times per year) holds public meetings after normal business hours. The Contractor will be given advanced notice by the COR as to when the Government will hold public meetings and when the Contractor can resume the normal cleaning schedule.

Date(s) and place(s) of delivery and acceptance and f.o.b. point.

The performance for this requirement shall be located within the Moose Creek Ranger District, Nez Perce-Clearwater National Forest. The Fenn Ranger Station is located at 831 Selway Road, Kooskia, ID 83539. All buildings, except the Cedar Flats Dormitory, are located at the Fenn Ranger Station. The Cedar Flats Dormitory is located ¾ mile east of the Fenn Ranger Station adjacent to warehouses and fulltime employee residences.

Period of Performance:

Period	POP Start Date	POP End Date
Base Period	01 May 2026	30 April 2027
Option Period 1	01 May 2027	30 April 2028
Option Period 2	01 May 2028	30 April 2029
Option Period 3	01 May 2029	30 April 2030
Option Period 4	01 May 2030	30 April 2031

Award Type

It is anticipated that a firm-fixed priced service contract consisting of one (1) 12 month base period and four (4) 12 month option periods shall be awarded as a result of this synopsis/solicitation. The total duration of this contract shall not exceed five (5) years and 6 months. The total duration includes a 6-month extension per FAR 52.217-8.

Evaluations and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. The Government will award a contract resulting from this solicitation to the responsible offeror whose quote, conforming to the solicitation, will be most advantageous to the government, price and other factors considered.

This is a comparative evaluation conducted in accordance with FAR 12.602. The Government reserves the right to select a quote that is superior in technical features or delivery schedule, even if that quote is not the lowest priced, if the Contracting Officer determines that the technical advantage justifies the price premium.

Technical Approach / Capability

The Government will evaluate the offeror's Technical capability to determine their understanding of the requirements described in the PWS. The contractor should demonstrate a clear plan for site coverage, QCP, Staffing.

- **Logistics & Site Coverage:** Describe how your team will manage the 3/4-mile distance between Fenn Ranger Station and the Cedar Flats Dormitory. Explain your plan for transporting personnel, equipment, and supplies between the two sites.
- **Quality Control Plan (QCP):** Detail your internal inspection process to ensure performance standards are met at both locations. This should include how you will identify and correct deficiencies before they are noted by the Government.
- **Schedule & Workload Management:** Provide a clear performance schedule that accounts for the specific hours of operation (typically 5:00pm – 5:00am).
- **Environmental & Safety Compliance:** The PWS requires Biobased products, describe your plan to acquire and use USDA-designated products.

Past Performance

Provide evidence of successful performance on contracts of similar scope and complexity. References should ideally show experience managing multi-site locations.

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Offeror does not have a past performance record.
- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

Price

The offeror shall provide pricing as requested in the Schedule of Items Attachment 1. Failure to propose pricing for all individual line items and option periods will result in a quote being excluded from further consideration. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Service Contract Labor Standards -

This requirement is subject to Service Contract Labor Standards (SCLS). Wage Determinations for the place of performance are attached. If your place of performance is not listed, you must request a wage determination in writing no later than two days before the solicitation closes.

Offerors who intend to perform in a place or area of performance for which a wage determination has not been attached or requested may nevertheless submit proposals. However, a wage determination shall be incorporated in the resultant contract, and there shall be no adjustment to the contract price.

Federal Acquisition Regulation (FAR) and United States Department of Aquiculture Acquisition Regulation (AGAR) Clauses, Provisions, Additional Terms and Conditions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

(i) FAR and AGAR Provisions

52.212-1 Instructions to Offerors—Commercial Products and Commercial Services (NOV2025)

Addendum to 52.212-1:

Submission Requirements: To be considered responsive, offerors must submit the following:

Administrative Documents

1. **Standard Form (SF) 1449:** Complete blocks 17a, 30a, 30b, and 30c. Ensure UEI for sam registration confirmation is included in box 17a.
2. Acknowledge any amendments issued by completing and signing the posted SF-30(s).

a) Technical Capability:

1. **Logistics & Site Coverage Plan:** A narrative describing the strategy for managing the 3/4-mile distance between Fenn Ranger Station and Cedar Flat and your plan for transporting personnel and supplies.
2. **Quality Control Plan (QCP):** A detailed internal inspection process to identify, document, and correct deficiencies before Government notification.
3. **Schedule & Workload Management:** A proposed performance schedule aligned with the 5:00 PM–5:00 AM operating hours.
4. **Environmental & Safety Compliance:** A description of the plan to acquire and use USDA-designated Biobased products as required by the PWS.
5. **Staffing & Key Personnel:** Identify the Contract Manager and Quality Control Representative (per PWS 6.0) and provide a brief summary of their experience with similar janitorial requirements. Identify any local subcontractors to be used by name and address

b) Past Performance:

1. Relevant Past Performance. The offeror shall include documentation regarding their relevant past performance as it directly relates to the work being procured under this solicitation. The offeror SHALL NOT go back any farther than 3 years for the submitted data. The past performance data shall document a successful history of past contract performance

c) Price Quotation:

1. Schedule of Items (Attachment 1): Provide a firm-fixed price for all line items and option periods

Service Contract Labor Standards -

This requirement is subject to Service Contract Labor Standards (SCLS). Wage Determinations for the place of performance are attached. If your place of performance is not listed, you must request a wage determination in writing no later than two days before the solicitation closes.

Offerors who intend to perform in a place or area of performance for which a wage determination has not been attached or requested may nevertheless submit proposals. However, a wage determination shall be incorporated in the resultant contract, and there shall be no adjustment to the contract price.

Time and Date offer are Due:

DUE DATE	SUBMISSION
On or Before 16 April 2026 11am (PDT)	Offers shall be submitted electronically to: Mindy Hickman mindy.hickman@usda.gov

FAR and AGAR Provisions Incorporated by Reference:

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)

52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation (SEP 2025)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (SEP 2025)

52.217-5 Evaluation of Options (Nov 2025)

The following provisions are applicable if checked:

- ☒ **52.204-7** System for Award Management—Registration (Nov 2025)
- ☒ **52.203-18** Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (JAN 2017)
- ☒ **52.204-7** System for Award Management (AUG 2025)
- ☒ **52.217-5** Evaluation of Options (SEP 2025)
- ☒ **52.222-18** Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)

FAR and AGAR Provisions incorporated by full text:

FAR Provisions:

52.216-1 Type of Contract (OCT 2025)

The Government contemplates award of a Firm-Fixed Price, [Requirements contract](#) resulting from this solicitation.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

(End of Provision)

52.252-5 Authorized Deviations in Provisions (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Agriculture Acquisition Regulation (48 CFR Chapter 4) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Provision)

AGAR Provisions:

- **452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)**

(1) By submission of its offer, the offeror certifies that:

(a) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.

(b) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(C) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(d) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(e) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.

(End of Provision)

(ii) FAR and AGAR Clauses:

FAR and AGAR Clauses Incorporated by Reference:

52.252-2 Clauses Incorporated by Reference

Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

☒ **52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)**

- ☒ **52.203-17** Contractor Employee Whistleblower Rights (NOV 2023)
- ☒ **52.203-19** Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017)
- ☒ **52.204-13** System for Award Management Maintenance (AUG 2025)
- ☒ **52.204-9** Personal Identify Verification of Contractor Personnel (JAN 2011)
- ☒ **52.204-19** Incorporation by Reference of Representations and Certifications (DEC 2014)
- ☒ **52.209-6** Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (JAN 2025)
- ☒ **52.209-10** Prohibition on Contracting with Inverted Domestic Corporations (SEP 2025)
- ☒ **52.209-11** Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (SEP 2025)
- ☒ **52.217-8** Option to Extend Services (Nov 1999)
 - (b) 15 calendar days prior to contract expiration
- ☒ **52.217-9** Option to Extend the Term of the Contract (Mar 2000)
 - (b) 15 Calendar days prior to contract expiration and 60 days five years and 6 months.
- ☒ **52.219-6** Notice of Total Small Business Set-Aside (NOV 2020)
- ☒ **52.219-28** Postaward Small Business Program Rerepresentation. (OCT 2025)
- ☒ **52.222-3** Convict Labor (OCT 2025)
- ☒ **52.222-19** Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☒ **52.222-36** Equal Opportunity for Workers with Disabilities(JUN2011)
- ☒ **52.222-40** Notification of Employee Rights Under the National Labor Relations Act (DEC 2010)
- ☒ **52.222-41** Service Contract Labor Standards (AUG 2018)
- ☒ **52.222-42** Statement of Equivalent Rates for Federal Hires (May 2014)
- ☒ **52.222-50** Combating Trafficking in Persons (Oct 2025)

This Statement is for Information Only:
It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
11150 Janitor	\$16.59

- ☒ **52.222-50** Combating Trafficking in Persons (OCT 2025)
- ☒ **52.222-62** Paid Sick Leave Under Executive Order 13706 (JAN 2022)
- ☒ **52.223-23** Sustainable Products and Services (MAY 2024)
- ☒ **52.226-8** Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024)
- ☒ **52.232-39** Unenforceability of Unauthorized Obligations (Jun 2013)
- ☒ **52.232-40** Providing Accelerated Payments to Small Business Subcontractors (MAR 2023)
- ☒ **52.233-3** Protest After Award (Sep 2025)
- ☒ **52.233-4** Applicable Law for Breach of Contract Claim (SEP 2025)
- ☒ **52.237-2** Protection of Government Buildings, Equipment, and Vegetation (APR 1984)
- ☒ **52.240-91** Security Prohibitions and Exclusions (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.240-91
- ☒ **52.244-6** Subcontracts for Commercial Products and Commercial Services (Nov 2025)

FAR and AGAR Clauses Incorporated by Full Text:

FAR Clauses

52.216-18 Ordering. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from *01 May 2026* through end of ordering period.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

AGAR Clauses

452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

1. It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.

2. Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

452.204–70 Modification for Contract Closeout (Nov 2025)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) shall issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but will not be required to provide a signature. The Contracting Officer shall immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) Upon contract closeout for contracts utilizing SAP: if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and will be required to provide a signature. (The Contracting Officer may also request a "Contractor Release of Claims" be completed by the contractor, although not required for contracts and orders using SAP.) If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 60 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(c) Upon contract closeout for contracts utilizing anything other than cost reimbursement, if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and a "Contractor Release of Claims" and will be required to provide a signature on both forms. If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 120 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(End of Clause)

52.232-40 Providing Accelerated Payments to Small Business Subcontractors. (Mar 2023)

(1) In accordance with [31 U.S.C. 3903](#) and [10 U.S.C. 3801](#), within 15 days after receipt of accelerated payments from the Government, the Contractor shall make accelerated payments to its small business subcontractors under this contract, to the maximum extent practicable and prior to when such payment is otherwise required under the applicable contract or subcontract, after receipt of a proper invoice and all other required documentation from the small business subcontractor.

(2) The Contractor agrees to make such payments to its small business subcontractors without any further consideration from or fees charged to the subcontractor.

(b) The acceleration of payments under this clause does not provide any new rights under the Prompt Payment Act.

(c) Include the substance of this clause, including this paragraph (c), in all subcontracts with small business concerns, including subcontracts with small business concerns for the acquisition of commercial products or commercial services.

(End of clause)

452.237-74 Key Personnel (FEB 1988)

(a) The Contractor shall assign to this contract the following key personnel: **Contractor Representative**

(Note to Contracting Officer: Insert the specific names or positions considered essential to the work, such as "Project Manager" or "Lead Engineer.")

(b) During the first 90 days, substitutions are only permitted for illness, death, or termination of employment, with notification required within 15 days. After 90 days, notice must be provided 15 days prior to any substitution.

(c) Requests for substitution must include detailed justifications, resumes for proposed replacements, and any requested information. Substitutes must have comparable qualifications, and the Contracting Officer will notify the contractor of approval within 15 days. The contract will be modified to reflect approved changes.

(End of Clause)

Additional terms and conditions:

NOTICE FOR FILING AGENCY PROTESTS

United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester’s concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency’s goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.

Government Point of Contact

Title	POC
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COR	
Technical Contact	